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Ügyszám: NAIH-4375-2/2024.

Előzmény: NAIH-3942/2023.

Tárgy: kérelmet elutasító határozat
és eljárást megszüntető végzés

A Nemzeti Adatvédelmi és Információszabadság Hatóság (a továbbiakban: Hatóság) [...] kérelmező (a továbbiakban: Kérelmező) 2023. március 10. napján benyújtott kérelme alapján az [...] -vel (a továbbiakban: Kérelmezett) szemben indult adatvédelmi hatósági eljárásban az alábbi döntéseket hozza:

I. A Hatóság a határozatában a Kérelmező

- érintetti kérelmei Kérelmezett általi teljesítésének kötelezésére, továbbá
- bankkártyájának Kérelmező lakcímére történő postázásával összefüggő jogellenes adatkezelés megállapítására

irányuló kérelmét

elutasítja.

II. A Hatóság a végzésében a kérelemnek

- a Kérelmező személyes adatainak aláírópad segítségével történő rögzítésének, és az így rögzített személyes adatok tárolásának,
- továbbá a Kérelmező személyazonosságának igazolására benyújtott és jogszabályi kötelezettség alapján arról készült másolat,
- a Kérelmező Központi Hitelinformációs Rendszerrel kapcsolatos nyilatkozatával összefüggő adatkezelés

jogellenességének megállapítására irányuló részében, továbbá

- a kártérítés megállapítására irányuló részében,

- valamint abban a részében, hogy a Kérelmező által küldött, a Hatósághoz 2022. november 2. napján érkezett beadványában feltett kérdéseket a Hatóság továbbítsa a Kérelmezetthez,

az eljárást megszünteti.

A jelen határozattal és végzéssel szemben közigazgatási úton jogorvoslatnak nincs helye, de az a közléstől számított 30 napon belül a Fővárosi Törvényszékhez címzett keresetlevéllel közigazgatási perben megtámadható. A keresetlevelet a Hatósághoz kell benyújtani, elektronikusan¹, amely azt az ügy irataival együtt továbbítja a bíróságnak. A tárgyalás tartása iránti kérelmet a határozattal szemben keresetlevélben jelezni kell. Az eljárást megszüntető végzéssel szemben benyújtott keresetlevelet a Fővárosi Törvényszék egyszerűsített perben, tárgyaláson kívül bírálja el. A teljes személyes illetékmentességben nem részesülők számára a közigazgatási per illetéke 30 000 Ft, a

¹ A közigazgatási per kezdeményezésére a NAIH_KO1 elnevezésű űrlap szolgál: NAIH KO1 űrlap (2019.09.16) Az

űrlap az általános nyomtatványkitöltő program (ÁNYK program) alkalmazásával tölthető ki. Az űrlap hozzáférhető és

letölthető a Hatóság honlapjáról: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>.

is subject to the jurisdiction of the relevant fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I. Procedure

(1) The Applicant submitted a request for the initiation of a data protection authority procedure against the Respondent on October 20, 2022, based on Section 60 (1) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.). The Applicant supplemented this request on November 2, 2022.

(2) The Authority called upon the Applicant to remedy deficiencies based on Section 44 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), which the Applicant partially complied with by the deadline on March 10, 2023.

(3) In its order, the Authority invited the Respondent to provide a statement for the clarification of the facts, referencing Section 63 of the Ákr., to which the Respondent's response was received by the Authority on May 4, 2023 (in document NAIH-3942-4/2023).

(4) The Authority again called upon the Respondent to provide a statement for the clarification of the facts, as further circumstances warranted examination. The Respondent submitted their statement to the Authority by the deadline on June 23, 2023, in response to the Authority's second request (in document NAIH-3942-6/2023).

(5) The Authority informed both the Applicant and the Respondent that the evidentiary procedure had been completed and drew their attention to the fact that they could make a statement or comment; both the Respondent and the Applicant exercised their right to access the documents, but only the Applicant exercised their right to make a statement.

II. Clarification of Facts

II.1. The Applicant's request and the remedying of deficiencies (in documents NAIH-8098-1/2022, NAIH-8098-2/2022, NAIH-8098-4/2022, NAIH-3942-2/2023):

(6) On October 20, 2022, the Applicant submitted a request to the Authority, in which they objected to the data processing by the Respondent. The Applicant stated in their request that they had submitted a handwritten request (hereinafter: Request) in person at one of the Respondent's branches ([...]). The Request was related to the processing of the Applicant's phone number and, quoting the Applicant, their "physical address type" data, and the Applicant requested that the code generated for two-factor authentication be sent via encrypted email, rather than to their phone number. The Applicant stated that they did not submit the Request via email to the Respondent because they feared that the Respondent would certainly not respond via encrypted email. The Applicant could not comment on whether they had possibly received a response from the Respondent by mail, but they did not request it that way, and if they received a response by mail, it "fell into the wrong hands." The Applicant stated that upon submitting the Request, they received a stamped photocopy of it. However, the Applicant did not submit the stamped copy of the document to the Authority but provided the text of the Request in typed form.

(7) The Applicant stated that they are a residential customer of the Respondent and have a bank account and bank card.

(8) On November 2, 2022, the Applicant sent a supplement to their submission, requesting the Authority to forward their request to the Respondent and "to ensure that the Bank processes these as well!"

(9) The Applicant made the following requests to the Authority based on the request received on October 20, 2022:

- Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: GDPR and General Data Protection Regulation) regarding the imposition of fines under Article 83 (1st request)
- The Authority shall oblige the Applicant to execute the "GDPR-based requests" in accordance with the content of the Application (2nd request)
- The Applicant shall provide information on what (biometric) data is collected by the electronic signature pads, and requested that this information be displayed in the Bank's data processing notices (3rd request)
- The Authority shall investigate why the KHR declaration was signed when the Applicant had blocked their bank card and requested a new bank card (4th request)
- The Authority shall prohibit the Applicant from using the electronic signature pads, except in cases where the customer explicitly requests their use (5th request)
- The Applicant requests compensation of HUF 100,000 from the Applicant based on Article 82 (1) of the General Data Protection Regulation for the time invested in "the preparation of technical accusations (report preparation, submission) and the taking of corrective administrative steps (e.g., blocking a mailed bank card)" (6th request)
- The Authority shall examine what the term "audited" means in relation to signature pads, "considering what security beliefs such claims may evoke in customers" (7th request)
- The Authority shall conduct a data protection authority procedure regarding the photocopying practice of the Applicant's identity card and address card prior to the entry into force of Act LIII of 2017 on the prevention and combating of money laundering and terrorist financing, considering that the Applicant photocopied the Applicant's identity card and address card (8th request)
- The investigation of whether the Applicant is "not enchanted" by the eID chips – using the Applicant's words (9th request)
- The investigation of whether "it does not constitute a serious data protection breach" that the bank card number is indicated on the bank card, and the Authority shall instruct the Applicant not to mail the bank card and not to use the mailing address (10th request)

(10) The Applicant requested the Authority in their submission received on November 2, 2022, to forward their request to the Applicant (11th request), in which they posed the following questions:

- Is it acceptable from a security perspective to limit user passwords to 8 characters?
- They requested that the Authority check whether the Applicant conducted a data protection impact assessment regarding the use of electronic signature pads, in accordance with Article 35 of the GDPR.
- They requested that the Applicant provide information in accordance with Articles 15 (1)-(3) of the GDPR.
- They wish to exercise their right to object under Articles 21 (1)-(2) and (6) of the GDPR.
- They requested from the Bank the list of the Applicant and other notified "entities" according to Article 19 of the GDPR.
- They requested information regarding data protection incidents related to the Applicant, the [...] and its partners.

(11) In addition to the above, the Applicant formulated further requests; however, in the Authority's opinion, these were aimed at examining the general practice of the Applicant, and the claims regarding the referenced violations were not substantiated. Therefore, the Authority called on the Applicant for supplementation in its decision NAIH-3942-1/2023.

(12) In the Applicant's statement for supplementation, they indicated which of their requests pertain to the general practice of the Applicant, and sent a video recording in which the affected party...

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his application (right to erasure and objection against the use for mailing purposes), and the Bank's stamp is also visible.

(13) Regarding the application concerning the "misdelivery of the bank card" and the KHR statement

contested in item 4 of the application, the Applicant did not specifically present what individual legal harm was suffered, nor did they provide evidence, only referring to an assertion proven by an "independent witness," but neither the name nor the contact details of the witness were brought to the Authority's attention.

(14) The Applicant also expressed concerns regarding the electronic signature pads and stated in this context that on September 19, 2022, they conducted a transaction at the Respondent's office. At that time, they signed several documents on the signature pad, but did not read through them; instead, they asked questions that could be interpreted as to whether its use was optional. The Applicant felt that the Respondent's clerk might not have understood their questions, but after further inquiries, the clerk clearly said yes and also mentioned that the signature pad records, for example, the position of the pen. According to the Applicant, the next day they looked into this data processing and found information on the Respondent's website ([...]) stating that the use of the signature pad is voluntary. The Applicant argues that the use of signature pads is concerning because they collect biometric data during their application.

II.2. The Respondent's Statement

(15) In the administrative procedure, the Respondent, called to make a statement for the purpose of clarifying the facts based on Section 62 of the Ákr., presented the following in their statement received on May 4, 2023.

(16) The Applicant submitted a handwritten request at the Respondent's [...] branch on January 28, 2022. In the request, the Applicant did not provide any identifying data other than their name. According to the bank branch staff, the Applicant was confused during the transaction and did not allow themselves to be identified, thus only the handwritten request was available to the Respondent. Based on the request, the bank branch recorded a complaint under [...] number [...] with the name. The Respondent's Complaint Handling Department recognized that the request was related to data protection, thus they contacted the Data Protection Department. The Respondent could not identify the Applicant based solely on the name. Given that the Applicant remained unidentified, the Respondent could not proceed with the case or respond. The reason for this was that there is no client named [...] at the Respondent, but all persons involved in the investigation of the submission read the Applicant's handwriting this way. Since the Applicant's handwritten name was illegible, no other data was provided, and they did not allow themselves to be identified, the Respondent could not respond to the submission.

(17) The submission sent by the Respondent in copy, detailed in paragraph (16) of this decision, according to the request referred to as an Application in paragraph (6) of this decision, stated that the Applicant requested the deletion of their phone number and withdrew their consent for its processing, and also informed the Respondent that this phone number no longer exists. The Applicant further objected to the processing of their mailing address (residential address), as they believe that this type of mailing is not secure. Furthermore, the Applicant requested "the list of their partners and other entities to be notified."

(18) On March 9, 2023, the Respondent registered another complaint ([...]), in which the Applicant requested that the data sheet containing their personal data, recorded on July 8, 2022, at the [...] branch, be sent to them by the Respondent. The Applicant's data was correct, the Respondent was able to identify them, and in response, the requested documents were sent to the Applicant by the Respondent.

(19) The Respondent stated that they have no knowledge of the request sent by the Applicant to the Authority via video recording.

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(20) The Requested copy includes the handwritten letter of the Applicant, as well as copies of 2 complaint records ([...]) and the bank's response ([...]).

(21) In its decision dated June 16, 2023, the Authority again called upon the Respondent to make a

statement, as based on the data controller's response, the Authority deemed that the Respondent's reply was received on June 23, 2023. The Respondent stated the following.

(22) The Respondent does not take minutes if the customer does not allow themselves to be identified, as it is not necessary.

(23) The Respondent did not attempt to perform identification through the PGP key mentioned in the application. Several letters of the public key handwritten by the Applicant are confusing, forming an unreadable string of characters. The Respondent deemed that seeking the Applicant based on the handwritten string of characters poses a privacy risk without prior identification. This is supported by the fact that the Respondent could not read the Applicant's handwritten name.

(24) The Respondent requires additional data beyond the name to perform identification. The Respondent does not use PGP technology.

II.3. The Applicant's statement regarding the completion of the evidentiary procedure and after the document inspection (NAIH-3942-12/2023 and NAIH-3942-12/2023 documents)

(25) The Applicant disagrees with the Respondent's assertion that the Applicant waived the use of AES technology encryption. The Applicant argues that this assertion is unacceptable because the Applicant was not aware that the Respondent was using such encryption. The Applicant waived two-factor identification, which they opposed. Moreover, the Applicant contends that since the Respondent claimed that the Applicant merely submitted a paper and left, the question arises as to how there could have been discussions about encryption technologies, and thus how the Applicant could have waived it.

(26) The Applicant further stated that the Application contains a PGP key from which their email address can be decrypted or read, therefore the Respondent's claim that they could not identify the Applicant is also unacceptable.

(27) In the decision NAIH-3942-3/2023, the Authority only listed the identifying data of the Applicant, without noting the date of submission of the application submitted by the Applicant. Nevertheless, the Respondent referred in their response statement to the application submitted by the Applicant on January 28, 2022, and moreover, indicated that the Applicant had another application (which was older in chronological order, namely from March 9, 2023, and contained the Applicant's identifying data), and the Authority did not refer to the applications in the plural.

(28) The Applicant objected that the Authority stated in the decision regarding the completion of the evidentiary procedure that the Applicant did not provide the name or contact information of the witness to the Authority. The Applicant referred to the fact that the witness's name and identification number are at the bottom of the witness document ([...] attachments). This witness testified regarding the mailing of the Applicant's bank card to the permanent address (which the Applicant opposed) and also about the practice related to electronic signature pads.

(29) The Applicant referred to the fact that the Respondent is making an untruthful statement regarding not allowing themselves to be identified, as the Applicant presented their ID card to the Respondent's administrator. According to the Applicant's claim, they can also prove this with a witness, as they brought a witness with them when submitting the application. The Applicant also stated that what the Respondent recorded regarding the verification of identity after the presentation of the ID card is not the Applicant's responsibility.

II.4. The Respondent's publicly available business regulations ([...])

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(30) The referenced business policy regarding retail bank accounts, deposits, and overdrafts states in section II.4.2.2.a that the Respondent manages the mailing address of the data subjects for the purpose of communication.

II.5. The publicly available data management policy of the Respondent ([...])

(31) It can be inferred from sections 4.2 and 5.1 of the referenced data management policy that the Respondent processes the mailing address of the Applicant by reference to Article 6(1)(b) of the GDPR, as it was obtained during the contract formation and execution process, and it is managed for communication purposes.

III. Applicable legal provisions

(32) According to Article 2(1) of the GDPR, the GDPR applies to the processing of personal data that is carried out in whole or in part by automated means, as well as to the non-automated processing of personal data that forms part of a filing system or is intended to form part of a filing system. The processing of data subject to the GDPR must be carried out in accordance with the GDPR, with the supplementary provisions specified in Section 2(2) of the Infotv.

(33) According to Article 4(1) of the GDPR, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(34) According to Article 4(2) of the GDPR, "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(35) According to Article 4(7) of the GDPR:

7. "data controller" means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria for its designation may also be provided for by Union or Member State law;

(36) According to Article 4(14) of the GDPR, "biometric data" means personal data resulting from specific technical processing related to the physical, physiological, or behavioral characteristics of a natural person, which allows or confirms the unique identification of that natural person, such as a facial image or fingerprint data.

(37) According to Articles 9(1) and (2) of the GDPR:

(1) The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data aimed at uniquely identifying a natural person, health data, and data concerning a natural person's sex life or sexual orientation is prohibited.

(2) Paragraph (1) shall not apply if:

a) the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union or Member State law provides that the prohibition referred to in paragraph (1) may not be lifted by the data subject's consent.

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(38) According to Articles 12 (1) - (6) of the GDPR:

(1) The data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, as well as every piece of information pursuant to Articles 15-22 and 34, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, especially in the case of any information addressed to children. The information shall be provided in writing or by other means – including, where appropriate, electronically. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(2) The data controller facilitates the exercise of the rights of the data subject as set out in Articles 15-22. In the cases referred to in Article 11 (2), the data controller shall not refuse to act on a request from the data subject to exercise their rights under Articles 15-22, unless it demonstrates that it is not in a position to identify the data subject.

(3) The data controller shall inform the data subject of the measures taken in response to a request under Articles 15-22 without undue delay and in any event within one month of receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months. The data controller shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay. If the data subject submitted the request electronically, the information shall be provided electronically where possible, unless the data subject requests otherwise.

(4) If the data controller does not take action on the request of the data subject, it shall inform the data subject without undue delay and at the latest within one month of receipt of the request of the reasons for not taking action, as well as the possibility for the data subject to lodge a complaint with a supervisory authority and to seek a judicial remedy.

(5) The information provided pursuant to Articles 13 and 14, as well as all information and actions taken under Articles 15-22 and 34, shall be provided free of charge. If the request from the data subject is clearly unfounded or, in particular, is excessive due to its repetitive nature, the data controller may:

- charge a reasonable fee for the administrative costs of providing the requested information or taking the requested action, or
- refuse to act on the request.

The burden of demonstrating that the request is clearly unfounded or excessive rests with the data controller.

(6) Without prejudice to Article 11, where the data controller has reasonable doubts concerning the identity of the natural person making the request under Articles 15-21, it may request additional information necessary to confirm the identity of the data subject.

(39) According to Article 16 of the GDPR, the data subject has the right to request the data controller to rectify inaccurate personal data concerning them without undue delay. Taking into account the purposes of the processing, the data subject has the right to request the completion of incomplete personal data, including by means of a supplementary statement.

(40) According to Article 17 of the GDPR:

(1) The data subject has the right to request the data controller to erase personal data concerning them without undue delay, and the data controller is obliged to erase personal data concerning the data subject without undue delay if one of the following grounds applies:

- a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6 (1) (a) or Article 9 (2) (a), and there is no other legal ground for the processing;

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c) the data subject objects to the processing of personal data pursuant to Article 21(1), and * there is no overriding legitimate reason for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data has been processed unlawfully;

e) the personal data must be erased to fulfill a legal obligation imposed on the data controller under Union or Member State law;

f) the personal data was collected in relation to the offering of information society services referred to in Article 8(1).

(2) If the data controller has made the personal data public and is obliged to erase it under paragraph

(1), it shall take reasonable steps, taking into account available technology and the cost of implementation—including technical measures—to inform data controllers who are processing the data that the data subject has requested the deletion of links to, or copies or replications of, the personal data in question.

(3) Paragraphs (1) and (2) shall not apply where the processing is necessary:

- a) for the exercise of the right to freedom of expression and information;
- b) for compliance with a legal obligation to which the data controller is subject under Union or Member State law, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i) and Article 9(3);
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph (1) is likely to render impossible or seriously impair the achievement of the objectives of that processing; or
- e) for the establishment, exercise, or defense of legal claims.

(41) Under Article 21 of the GDPR:

(1) The data subject has the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on Article 6(1)(e) or (f), including profiling based on those provisions. In this case, the data controller shall no longer process the personal data unless the data controller demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or which relate to the establishment, exercise, or defense of legal claims.

(2) Where personal data is processed for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning them for such marketing, which includes profiling to the extent that it is related to such direct marketing.

(3) If the data subject objects to the processing of personal data for direct marketing purposes, the personal data shall no longer be processed for such purposes.

(4) The right referred to in paragraphs (1) and (2) shall be explicitly brought to the attention of the data subject at the latest at the time of the first contact, and the information regarding this right shall be presented clearly and separately from any other information.

(5) In relation to the provision of information society services and notwithstanding Directive 2002/58/EC, the data subject may also exercise the right to object by automated means using technical specifications.

(6) Where personal data is processed for scientific and historical research purposes or statistical purposes in accordance with Article 89(1), the data subject shall have the right to object on grounds relating to their particular situation to the processing of personal data concerning them.

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against its processing, unless the processing of data is necessary for the performance of a task carried out in the public interest.

(42) According to Article 58(2)(b) and (d) of the GDPR, the supervisory authority, acting within its corrective powers:

- a) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this regulation.
- b) instructs the data controller or the data processor to bring their data processing operations into compliance with the provisions of this regulation - where applicable, in a specified manner and within a specified time frame.

(43) According to Article 77(1) of the GDPR, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority -

particularly in the Member State of their habitual residence, their place of work, or the place of the alleged infringement - if the data subject believes that the processing of their personal data violates this regulation.

(44) According to Section 38(2b) of the Infotv., the Authority's tasks defined in paragraph (2) concerning personal data do not extend to the exercise of the powers defined in paragraph (3) regarding data processing operations carried out by the court in judicial and non-judicial proceedings aimed at making a court decision, based on the relevant provisions.

(45) According to Section 60(1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(46) According to Section 60(5) of the Infotv., in the case specified in paragraph (2), the request shall include, in addition to what is defined in the law on general administrative procedure:

- a) the designation of the alleged infringement,
- b) a description of the specific behavior or condition that constitutes the alleged infringement,
- c) the data necessary for the identification of the data controller or data processor responsible for the alleged infringement, which is available to the applicant,
- d) facts and evidence supporting the claims related to the alleged infringement, and
- e) a specific request for a decision regarding the remedy of the identified infringement.

(47) According to Section 71(1) of the Infotv., during its proceedings, the Authority may process all personal data, as well as data classified as protected secrets by law and data subject to professional secrecy, that are related to the proceedings and whose processing is necessary for the effective conduct of the proceedings, to the extent and duration necessary for conducting the proceedings.

(48) According to Section 75/A of the Infotv., the Authority exercises its powers specified in Articles 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly in that, in the case of a first-time violation of the provisions regarding the processing of personal data - as defined in legislation or in a binding legal act of the European Union - the Authority primarily acts by warning the data controller or data processor regarding the remedy of the infringement, in accordance with Article 58 of the General Data Protection Regulation.

(49) According to Section 17 of the Ákr., the authority shall examine its jurisdiction and competence ex officio at every stage of the proceedings. If it detects any deficiency, and there is no doubt...

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It can be established that the authority with jurisdiction in the case will transfer the case; in the absence of such authority, it will reject the application or terminate the proceedings.

(50) According to Section 35 (1) of the Administrative Procedure Act (Ákr.), the application is a statement by the client requesting the conduct of an administrative procedure or the decision of the authority in order to enforce their rights or legitimate interests.

(51) According to Section 47 (1) a) of the Ákr., the authority shall terminate the proceedings if the application should have been rejected, but the reason for this came to the authority's attention after the initiation of the procedure.

(52) According to Section 46 (1) a) of the Ákr., the authority shall reject the application if the conditions for initiating the procedure specified by law are lacking, and this law does not attach any other legal consequences to it.

(53) According to Section 62 (4) of the Ákr., the authority freely chooses the method of proof and evaluates the available evidence according to its own conviction.

(54) Based on points a)-b) of Section 7 (8) of Act LIII of 2017 on the prevention and combating of money laundering and terrorist financing (hereinafter: Pmt.):

In order to prevent and combat money laundering and terrorist financing, to properly fulfill the obligations defined in this law, to fully execute the customer due diligence obligation, and to effectively

carry out supervisory activities, the service provider, for the purpose of verifying identity,

a) except for the case defined in point b), makes a copy of the document containing the data specified in paragraph (2) and presented according to paragraph (3) – including all personal data indicated in the document – except for the page of the official identification document that verifies the personal identification, or

b) records and keeps the result of the data query from the public register carried out according to paragraph (3) concerning the data specified in paragraph (2).

(55) According to point c) of Section 39 (1) of Act CXXXIX of 2013 on the Hungarian National Bank (hereinafter: MNB Act), unless otherwise provided by law, the MNB shall supervise organizations, individuals, and activities falling under the scope of the Act on Credit Institutions and Financial Enterprises in the scope defined in Section 4 (9).

IV. Decision:

IV.1. The personal data of the Applicant stored by the Respondent, the quality of data controller, and the subject of the investigation

(56) The identifying data of the Applicant, the data and information related to the Applicant's bank account, and the content of the Application qualify as the personal data of the Applicant according to Article 4 (1) of the General Data Protection Regulation (GDPR), and the storage, use, and transfer of such data constitute data processing under Article 4 (2) of the GDPR.

(57) Based on the above, the Authority's position is that the Respondent can be considered an independent data controller regarding the processing of the Applicant's personal data according to Article 4 (7) of the GDPR, as it has an independent purpose for data processing and determines the substantive decisions related to the circumstances of data processing itself.

IV.2. The Application (Application No. 2)

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(58) The subject of the procedure in this regard was to examine whether the Request was fulfilled/responded to by the Respondent in accordance with the provisions of the General Data Protection Regulation, and whether the Respondent adequately justified the failure to fulfill.

(59) The Request contains the Applicant's request for deletion under Article 17(1)(b) of the GDPR, as well as the exercise of the right to object under Article 21 of the GDPR, and refers to Article 16 of the GDPR, in connection with the fact that the residence address is not a mailing address, and that no correspondence should be sent there as it is not secure.

(60) The data subject is entitled, under Article 17(1)(b) of the GDPR, to request the deletion of their personal data from the data controller if they withdraw their consent, which forms the basis for data processing under Article 6(1)(a) or Article 9(2)(a) of the GDPR, and there is no other legal basis for the data processing. Furthermore, the data subject has the right to object to the processing of their personal data under Article 21 of the GDPR, as well as the right to request the rectification of their personal data under Article 16 of the GDPR.

(61) The data controller is obliged to fulfill the requests of data subjects, including requests aimed at exercising the rights mentioned in the preceding paragraph, in accordance with the provisions of Article 12 of the GDPR, or to justify the refusal of fulfillment.

(62) Article 12(2) of the GDPR provides that the data controller must facilitate the exercise of the rights of data subjects, and may not refuse to fulfill a request aimed at exercising these rights unless it demonstrates that it is not in a position to identify the data subject. In the present case, the Respondent claimed that it could not identify the Applicant because the latter's name was not legible, and therefore did not respond to the Applicant's request. The Authority considers this acceptable because the Applicant's request submitted to the Respondent did not contain any personal data other than the Applicant's not clearly readable name. The Request did not include the Applicant's identifying

data, bank account number, or other banking identifiers, nor their email address or postal address, based on which the Respondent could have clearly identified the Applicant. The Authority does not share the Applicant's view that identifying the Applicant could not have posed significant difficulties, given that the Respondent was able to identify the Applicant in response to the Authority's inquiry, despite the fact that the Authority did not specify in its call NAIH-3942-3/2023 when the Request was submitted, to which it did not receive a response. The Authority disagrees with this because, in the call written to the Respondent, it described the method, time, and circumstances of submitting the data subject request, with which the Respondent could clearly identify to whom the data subject request was related, and whose identity the Respondent had previously been unable to ascertain. The Authority accepted the Respondent's argument that there were doubts regarding the Applicant's identity, and since the Applicant's name was not clearly indicated on the Request, and there was no contact information, the Respondent could not identify the person submitting the request, i.e., the Applicant.

(63) The Authority also did not accept the Applicant's reference that the Respondent could have identified based on the general key indicated in the Request. The referenced encryption method - PGP, or "Pretty Good Privacy" - works in such a way that if, for example, someone wants to receive an encrypted message, they provide their own public encryption key (which is visible in the Request), with which the other party encrypts the message to be sent, and then sends it to the data subject's email address. The encrypted message received in this way can then be decrypted by the email recipient, and ideally only by the email recipient, using their own private key. However, the entire process also requires that, in addition to this public key, the email sender receives the other party's email address; without it, they cannot send anything. Therefore, the Request does not contain an encrypted email address, but rather a public encryption key, which cannot be used to send an email on its own without...

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The Applicant knew what the affected email address was, yet this was not included in the Request.

(64) The Authority believes that the fulfillment of the request by the data subject must not only be facilitated by the data controller, but the data subject must also be cooperative and must allow for their identification. Without the cooperation of the data subject, the data controller may refer to the exception mentioned in Article 12(2) of the GDPR, thus proving that it was not possible to identify the data subject. In the present case, the identification of the Applicant was particularly complicated by the fact that, apart from their poorly readable name, they did not provide any other data that could have facilitated their identification, therefore the Respondent could not apply the provisions of Article 12(6) of the GDPR, as it was not in a position to request additional information to confirm the identity of the Applicant.

(65) For the above reasons, the Authority determined that the Respondent did not violate the provisions of Articles 12(1) – (4) of the GDPR regarding the requests of the Applicant as a data subject, and therefore could not be instructed to fulfill the requests of the Applicant, thus the Authority rejected the Applicant's request in this regard.

IV.3. The Respondent's general practice regarding the use of signature pads, eID chips, and the photocopying of identity cards and address cards - investigation request concerning the Applicant's personal data (Requests No. 3, 5, 8, and 9)

(66) The examination of the Respondent's general practice does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for them, therefore, in terms of the application of this legal consequence falling within the scope of public interest enforcement, the Applicant does not qualify as a client according to Section 10(1) of the Administrative Procedure Act (Ákr.). Since this request does not meet the requirements of Section 35(1) of the Ákr., there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

(67) The Authority terminates the procedure aimed at examining the use of signature pads concerning

the Applicant's personal data for the following reasons. The procedure was initiated by the Authority at the request of the Applicant based on Article 77(1) of the General Data Protection Regulation and Section 60(1) of the Information Act (Infotv.). The data protection authority procedure initiated upon request is a procedure in which the Authority examines violations concerning the Applicant's own personal data and decides on their validity primarily based on the facts and evidence presented by the Applicant. The peculiarity of this procedure is that it is not initiated at the will of the Authority, but rather the client approaches the Authority of their own accord. In the procedure initiated upon request, it is primarily the Applicant's responsibility to present the facts and relevant evidence regarding the alleged violations. This is confirmed by Section 60(5) of the Infotv., as well as Article 77(1) of the GDPR, which states that in such cases, the violation occurred "according to the assessment of the data subject." According to point d) of Section 60(5) of the Infotv., the request must also contain facts and evidence supporting the claims related to the alleged violation. Therefore, in the procedure initiated upon request, the documents and other evidence supporting the request must primarily be presented by the Applicant, and the Authority cannot be compelled to substantiate the request.

(68) Signature pads may indeed be suitable in certain cases to record biometric data as defined in Article 4(14) of the General Data Protection Regulation, such as writing speed or the pressure of the signing pen, etc. Therefore, according to Article 9(1) and point a) of paragraph (2) of the General Data Protection Regulation, they can only be used if the data subject gives their consent.

(69) The Applicant's statement that they did not read the documents before using the signature pad and only asked the clerk questions is not acceptable. The consent that the data subject gives with their signature pertains to what is signed.

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The documents refer to the written content, not to what is discussed verbally with the official. The Applicant merely listed their assumptions and concerns regarding the use of signature pads and referred to what they discussed with the official, while providing their consent by accepting information they did not read; however, they did not present their concerns regarding that.

(70) Since the Applicant's request does not contain information supporting the alleged data protection violation against the Applicant, even after the call for supplementation, regarding the use of signature pads, the Authority terminated the procedure concerning the recording of the Applicant's personal data using the signature pad and the storage of the personal data recorded in this manner, in accordance with Section 60 (5) d) of the Infotv. and Section 47 (1) a) of the Ákr.

(71) The Respondent is bound by the provisions of the Pmt. regarding the data processing related to document copying, thus, in the case specified in Section 7 (8) a) of the Pmt., they are obliged to photocopy the client's identity card and the specified page of their address card. Considering that the Applicant did not articulate a specific violation regarding this data processing by the Respondent, but only objected to this type of data processing, the Authority also terminated the procedure regarding this request in accordance with Section 60 (5) d) of the Infotv. and Section 47 (1) a) of the Ákr.

IV.4. Mailing of the Applicant's bank card to the permanent address, mailing to the wrong address, and the indication of the bank card number on the bank card (Request No. 10)

IV.4.1. Mailing of the bank card to the permanent address

(72) The Respondent has a legal basis for storing the Applicant's address data under Article 6 (1) b) of the GDPR, as the Applicant is a client of the Respondent and has a contract with the Respondent, thus the processing of this data is necessary for the fulfillment of this contract, and it cannot be deleted even in the case of a deletion/objection request.

(73) In accordance with the above, it can be established that the Respondent has an appropriate legal basis for processing the Applicant's address data as a mailing address, namely Article 6 (1) b) of the GDPR, thus in connection with the fulfillment of the contract (in this case, in connection with the bank account contract and the bank card contract). The mailing of the bank card is also part of the contract fulfillment.

(74) For the above reasons, the Authority's position is that the mailing of the bank card to the Applicant's address, thus the use of the address data for this purpose, is not objectionable from a data protection perspective; therefore, the Authority rejects the Applicant's request for the Authority to determine the illegality of this data processing.

IV.4.2. Indication of the bank card number on the bank card

(75) The bank card number, as its name suggests, is related to the bank card. The bank card number, as the number of the Applicant's bank card, is personal data under Article 4 (1) of the GDPR. However, the question of whether the bank cards used by financial institutions comply with the sectoral regulations regarding payment instruments is not within the Authority's jurisdiction to examine. The Applicant's assertion that "is it not considered a serious data protection omission" regarding the Respondent's practice of indicating the bank card number on the bank card refers to the Respondent's practice, which can be initiated for examination not based on a request but ex officio, based on the Authority's decision. Based on the findings in paragraph (66) of this decision, the examination of the Respondent's general practice does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for them, and therefore this - falling within the scope of public interest enforcement -

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Regarding the application of legal consequences, the Applicant is not considered a client under Section 10 (1) of the Administrative Procedure Act (Ákr.). Since this request also does not meet the criteria of Section 35 (1) of the Ákr., there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request. The Authority currently does not find it justified to investigate this data processing ex officio.

IV.5. Date of signature of the Applicant's KHR declaration (Request No. 4)

(76) The claims made by the Applicant in this part of the request do not substantiate unlawful data processing; therefore, the Authority, among other things, called upon the Applicant in the supplementary request to support their claims in this regard. However, the Applicant did not submit any documents related to this claim and did not detail the data processing operation they contested in a way that would substantiate unlawful data processing.

(77) Considering that the Applicant did not specify any concrete violation regarding the Respondent's data processing, but merely contested this type of data processing, the Authority, based on point d) of Section 60 (5) of the Information Act (Infotv.) and point a) of Section 47 (1) of the Ákr., terminated the procedure regarding this request as stated in the operative part.

IV.6. Request for the imposition of a fine (Request No. 1)

(78) The obligation of the Respondent to pay a fine does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create any rights or obligations for the Applicant. Therefore, regarding this legal consequence, which falls within the scope of public interest enforcement, the Applicant is not considered a client under Section 10 (1) of the Ákr. Since this request also does not meet the criteria of Section 35 (1) of the Ákr., there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

IV.7. Request for compensation and forwarding of questions posed by the Applicant in the submission sent on November 2, 2022, to the Respondent (Requests No. 6 and 11)

(79) The general rules of compensation are regulated by Act V of 2013 on the Civil Code, and based on Section 38 (2) and (2a) of the Infotv., the determination of liability for damages and its extent does not fall within the Authority's jurisdiction; only the court is authorized to decide on this matter. Therefore, regarding the Applicant's request for the determination of compensation, the Authority terminates the procedure based on point a) of Section 47 (1) of the Ákr.

(80) The Authority acts according to Section 38 (2) and (2a) of the Infotv., which states that it does not have the jurisdiction to forward the questions posed by the Applicant to the Respondent, as detailed in

paragraph (10) of this decision. Furthermore, the Authority did not consider these requests—except for the one regarding the signature pad—as evidence proposals, since they pertain to the exercise of rights by the parties involved and the criteria for "user passwords," the examination of which the Applicant did not request from the Authority. If the Applicant had requested it, the Authority, as a general practice, would not have examined it due to the reasons outlined in paragraph (57) of this decision. The question regarding signature pads was rejected by the Authority as a potential evidence proposal because the Authority did not examine the general practice regarding signature pads in this procedure concerning the Respondent.

IV.8. Legal consequences

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(81) The Authority has exceeded the administrative deadline set forth in Section 60/A (1) of the Infotv., therefore the Applicant is entitled to 10,000 HUF, that is, ten thousand forints – at their choice – via bank transfer or postal order based on Section 51 (1) b) of the Ákr.

V. Other Questions:

(82) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(83) The decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr. Pursuant to Section 112 and Section 116 (1), as well as Section 114 (1) of the Ákr, there is a right to legal remedy against the decision through administrative litigation. According to Section 112 (1) and (2) d) of the Ákr, as well as Section 114 (1) of the Ákr, there is a separate legal remedy against the order through administrative litigation.

* * *

(84) The rules of administrative litigation are determined by Act I of 2017 on the Code of Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the litigation. According to Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(85) Section 29 (1) of the Kp. and, in this regard, Section 604 of the Pp. apply, and according to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(86) The time and place for the submission of the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

(87) The Authority has exceeded the one hundred and fifty-day administrative deadline set forth in Section 60/A (1) of the Infotv. during the proceedings, therefore, based on Section 51 b) of the Ákr, the Applicant is entitled to ten thousand forints.

Budapest, "according to the electronic signature and timestamp"

Dr. habil. Attila Péterfalvi
President
Associate Professor